

discovery obligations that one would expect to see from counsel diligently attempting to informally resolve the matter.

Zigi requests \$8,664.99 in sanctions: \$2,124.99 in costs for court reporters and videographers for the February and June depositions, eight hours of attorney time on the motion, and four hours of attorney time on the reply and attending the hearing, at \$545 an hour. The \$2,124.99 in costs for the court reporters and videographer is substantiated by the invoices, and the hourly rate and expenses is reasonable given the nature of the litigation and prevailing rates in the area. Twelve hours of attorney time is somewhat excessive, however, for a straightforward motion to compel when the deponent twice failed to appear. The court reduces the number of hours on this motion to eight.

Ruling: Grant the motion to compel and order 22000 Opportunity Way to produce a PMK for deposition within 10 days. Award moving party \$6,484.99 in sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2402278	PINYON CREST COMMUNITY ASSOCIATION vs LGR DEVELOPMENT	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

The request of LGR to continue the motion for post judgment attorney fees and to allow limited discovery is granted. The motion for attorney fees is continued to 10/1/2026 at 8:30 am in Dept. 3. LGR is entitled to discovery regarding the additional attorney fees and costs sought.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406201	LIN vs YOW	MOTION TO TAX COSTS

Tentative Ruling:

In ruling on a motion to tax costs, the court must first determine “whether the statute expressly allows the particular item, and whether it appears proper on its face. If so, the burden is on the objecting party to show [the cost] to be unnecessary or unreasonable.” (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 131.) If an item is not expressly allowed under the statute, the burden is on the party seeking the expense to provide evidence that the fees are reasonable or necessary. (*Id.* at 132.)

There is no dispute that Defendant, Yow, were the prevailing parties in this action based on Plaintiff’s voluntary dismissal of the action. A prevailing party is “entitled as a matter of right to recover costs in any action or proceedings.” (CCP § 1032(a)(4).)

Plaintiff challenges specific entries in the MOC, which entries are analyzed below:

Item No. 1 (Filing Fees): Under CCP § 1033.5(a)(1), filing fees are allowable costs, which must also be reasonably necessary to the conduct of the litigation and reasonable in amount. (CCP § 1033.5(c).) Defendants' MOC seek \$292.35 in filing and motion fees.

Plaintiff challenges all but, one \$60.00 motion filing fee. Specifically, Plaintiff challenges \$112.35 (21 items at \$5.34 each) as apparently unrelated to costs charged by the Court; and \$120.00 for two motions to be relieved as counsel, which fees were incurred by Defendants' prior counsel.

Defendants assert that their prior counsel, Park LLP, incurred \$254.90 in filing fees. (Dec.Chou ¶ 6, Ex. "A".) They add that Park, LLP was relieved as counsel and Ms. Chou's firm substituted into the case and incurred additional costs of \$37.45. (*Id.* ¶ 7, Ex. "B".)

In the Reply, Plaintiff argues that Ms. Chou improperly purports to authenticate Park, LLP's invoices and billing statements prior to Park being relieved as counsel. Notably, there is no declaration from Park, LLP. And, Ms. Chou does not claim to be a custodian of records for Park, LLP. Plaintiff objects to Ms. Chou's declaration based on lack of foundation for personal knowledge and lack of authentication of exhibits. (see Reply, Objs. To Dec.Chou, Nos. 1-3.) These objections are well-taken and should be sustained.

Importantly, CCP § 1033.5(c)(1) provides: "Costs are allowable if incurred, whether or not paid." In *Cell-Crete Corp v. Federal Ins. Co.* (2022) 82 Cal.App.5th 1090, 1095, the Court reversed a trial court order granting a motion to tax costs where the trial court denied costs on the basis that another party "actually incurred and/or paid those costs and expert fees through an indemnification provision." (*Cell-Crete, supra.* citing *Litt v. Eisenhower Med. Ctr.* (2015) 237 Cal.App.4th 1217, 1221 [the Court of Appeal concluded "the actual payer is irrelevant."]) Under CCP § 1032's "cost-shifting provision, there is 'no requirement that a party claiming costs must have personally incurred the obligations enumerated in the memorandum.'" (*Cell-Crete, supra.* citing *Litt* at 1222.) "What is important, the court held, is that "Defendants incurred legal liability to pay the costs of the litigation even though some other party may have agreed to reimburse them or to pay all the expenses of the litigation.'" (*Cell-Crete, supra.*) Thus, costs were incurred by Defendants.

Problematically, based on Plaintiff's Objections, Defendants have not established Park, LLP's filing fees (\$254.90). Thus, this amount should be stricken. The amount of \$37.45 is allowed.

Item No. 14 (Electronic Filing/Service Fees): CCP §1033.5(a)(14) allows for recovery of electronic filing or service fees through an electronic filing service provider if the court orders electronic filing or service of documents. This statute does not expressly prohibit recovery of such fees when not ordered by the court. In addition, CCP

§1033.5(a)(1) expressly permits recovery of filing fees, and (c)(4) gives the court discretion to allow cost items not mentioned but that are reasonably necessary to the conduct of the litigation. Defendants' MOC challenges \$1,477.29 but, has not itemized or justified these costs, which Plaintiff argues should be reduced to zero.

Defendants assert that the claimed amount of \$1,477.29 should be reduced to the corrected amount of \$1,302.29. Similar to the filing fees, Ms. Chou declares that \$1,127.29 in E-filing fees were incurred during Park, LLP's representation, while the Chou firm incurred \$175.00 for a total of \$1,302.29. Ms. Chou has provided itemization of these amounts. (Dec.Chou ¶¶ 6-7, Exs. "A" – "B".) Here again, based on Plaintiff's Objections, Defendants have not established Park, LLP's E-filing fees (\$1,127.29). Thus, this amount should be stricken. The amount of \$175.00 is allowed.

Ruling: The motion is granted in part.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506714	ELLIS vs BEAUMONT UNIFIED SCHOOL DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

First Amended Complaint (FAC) and Allegations.

This is a discrimination, retaliation and wrongful termination lawsuit initiated by Plaintiff Jennifer Marie Ellis on December 3, 2025 against her former employer Defendant Beaumont Unified School District (or the "District"). District hired Plaintiff on December 26, 2016 as an Accounting Assistant, and she eventually was promoted to Benefits Payroll Technician in 2021. The FAC alleges that beginning in 2017 and continuing thereafter, Purchasing Supervisor Bernie Reveles ("Reveles") engaged in unwelcome and offensive physical touching of Plaintiff and another female coworker Katie Nunez ("Nunez") in Plaintiff's presence. Plaintiff immediately reported Reveles's conduct to her supervisor, Dawn Bray ("Bray"), and the Human Resources ("HR") Director, Jennifer Castillo ("Castillo"), but no investigation was conducted. Reveles's harassing conduct escalated: unwelcome touching of Plaintiff's back, fondling her bra strap, pressing his groin directly toward her face while she was seated, blocking doorways to force Plaintiff to brush past him, sneaking up behind her to startle her, adjusting his genital area in Plaintiff's presence, and unwelcome sexualized comments about Plaintiff's appearance and body.

In October 2022, Plaintiff discovered that Defendant was improperly depositing American Fidelity refunds into the general fund instead of returning the funds to employees and reported this issue to Assistant Superintendent of Business Services, Penni Harbauer ("Harbauer"). Harbauer and Plaintiff's supervisor, Andrea Hernandez ("Hernandez"), directed Plaintiff to accept the situation. Plaintiff disclosed the office's hostile dynamics and retaliation for reporting issues to Superintendent Mays Kakish